

POLICE, COUNCIL & LEGAL LIABILITY - TERMS & CONDITIONS

1. Ownership of the Vehicle

- 1.1 The Customer acknowledges and agrees that legal ownership (title) remains with Neguinho Motors Ltd or HI-BIKE4U LTD ("the Seller") until all sums due under this Agreement have been paid in full.
- 1.2 Possession and day-to-day control of the vehicle are transferred to the Customer only for the purpose of use, subject to the terms of this Agreement.

2. Keeper & Person in Charge - Enforcement Liability

2.1 For the duration of the payment plan, the Customer is designated as the "keeper" and "person in charge of the vehicle" for all road traffic enforcement purposes, including but not limited to the:

- Traffic Management Act 2004, including
 - Section 92 (definition of owner as person keeping the vehicle),
 - Section 85-86 (contravention liability),
 - Schedule 10 (enforcement framework);
- Road Traffic Act 1988, including
 - Section 66(2) (liability of person in charge),
 - Section 143 (insurance obligations),
 - Section 192 (interpretation of vehicle control);
- Road Traffic Regulation Act 1984, including statutory provisions relating to moving, stopping, parking, and restricted zones;
- Road Traffic Offenders Act 1988, including statutory provisions relating to fixed penalties and keeper liability;
- Where applicable: London Local Authorities Acts and the Transport for London Act, including provisions relating to CCTV enforcement, ULEZ, Congestion Charging, Red Routes and Bus Lane enforcement.

2.2 This designation applies notwithstanding that legal title to the vehicle remains with the Seller.

3. Transfer of Liability

3.1 The Customer assumes full legal responsibility for:

- a) Any Penalty Charge Notice, Excess Charge Notice, Fixed Penalty Notice, Bus Lane Penalty, CCTV enforcement penalty, Congestion Charge, ULEZ charge, toll, or any statutory charge incurred in relation to the use or keeping of the vehicle;
- b) Any contravention under the Traffic Management Act 2004, Road Traffic Regulation Act 1984, London Local Authorities Acts, or Transport for London legislation;
- c) Any road traffic offence committed under the Road Traffic Act 1988 or Road Traffic Offenders Act 1988;
- d) Any enforcement liability arising during the period in which the Customer is in possession or control of the vehicle.

3.2 The Seller is authorised to provide this Agreement, together with the Customer's statutory particulars, to any Enforcement Authority for the purpose of transferring liability.

3.3 Liability shall transfer irrespective of DVLA processing times, delays, or database updates, as liability is determined by possession and keeper responsibility, not legal title.

4. No Transfer of Title

4.1 Nothing in this clause or Agreement transfers ownership to the Customer until full payment has been made.

4.2 The Customer acknowledges that the enforcement designation of "keeper" does not confer any ownership rights.

4.3 This clause does not create a hire-purchase, conditional sale, or regulated credit agreement.

4.4 The Seller retains full rights to recover or repossess the vehicle in the event of non-payment or breach.

5. Customer Duties

5.1 The Customer shall comply with all obligations under the Traffic Management Act 2004, Road Traffic Act 1988, Road Traffic Regulation Act 1984, and all other applicable legislation.

5.2 The Customer shall pay all penalties incurred during the possession period and indemnify the Seller.

6. Consent to Disclosure

6.1 The Customer expressly consents to the Seller supplying their details to any Police Force, Council, Transport Authority, DVLA, or Enforcement Agency for the purposes of liability transfer.

COMPANY AUTHORISATION CLAUSE

Neguinho Motors Ltd and HI-BIKE4U LTD jointly confirm and agree that any employee, manager, or representative of the company acting within the course of their duties is authorised to:

- execute hire, rental, subscription, or payment plan agreements for vehicles.
- sign, certify, and provide copies of such agreements and related documents.

